The Mauritanian Paradox: A Systems Analysis of Institutional Sabotage, State Fragility, and Pathways to Legitimacy

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Executive Summary

The Islamic Republic of Mauritania presents a critical paradox for international analysis: a state with formalized, modern legal frameworks against hereditary slavery and human trafficking that simultaneously sustains one of the world's most entrenched systems of chattel slavery through extractive institutional practices. This strategic misalignment is not a passive failure but an active mechanism of institutional sabotage that reinforces deep-seated socio-political fragility. An analysis of Mauritania's conflict system reveals a "Governance and Exclusion Loop," where political repression and official complicity perpetuate the social and economic exclusion of marginalized groups, particularly the Haratine and Afro-Mauritanian populations. This, in turn, fuels the grievances and instability that undermine the state's legitimacy and create permissive conditions for extremism.

This document argues that the disconnect between Mauritania's de jure commitments and de facto reality constitutes the primary driver of its internal fragility. Formal laws, such as the 2015 anti-slavery act, are systematically undermined by a judiciary and security apparatus that favors extra-judicial mediation, suppresses complaints, and demonstrates near-total impunity for perpetrators of slavery. This dynamic is characteristic of extractive institutions designed to preserve a rigid, ethnically stratified social order rather than to uphold the rule of law.

Addressing this systemic dysfunction requires moving beyond reactive, crisis-management approaches toward a systems-based intervention grounded in the Positive Peace framework. The Institute for Economics & Peace (IEP) defines Positive Peace as the attitudes, institutions, and structures that create and sustain peaceful societies. By applying this framework, this analysis identifies a critical leverage point for systemic transformation: the institutionalization of binding authority and inclusive membership within Mauritania's National Committee for Combating Human Trafficking and Smuggling (INCHTMS). A revitalized INCHTMS, empowered to enforce legal mandates and coordinate a victim-centered response, can directly target key Positive Peace Pillars, including *Well-Functioning Government*, *Acceptance of the Rights of Others*, *Low Levels of Corruption*, and *Equitable Distribution of Resources*.

The efficacy of such an intervention can be measured through actionable Key Performance Indicators (KPIs) linked to tangible outcomes. These include increased conviction rates for slavery and trafficking, a significant rise in victim referrals to state and NGO services through a fully operational National Referral Mechanism (NRM), and improved rankings on global fragility and governance indices. By systematically dismantling the mechanisms of institutional sabotage and building a foundation of accountable governance, a systems-based approach offers a viable pathway to generate measurable accountability, break the cycle of fragility, and establish durable state legitimacy in Mauritania.

1. Introduction: Framing the Mauritanian Paradox

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The Islamic Republic of Mauritania occupies a unique and troubling position as a "final global bastion of slavery," a nation where the "direct and often proud ownership of human beings" persists despite being the last country on Earth to officially abolish the practice (Whistler, 2024). While the state has enacted sophisticated anti-slavery and anti-trafficking legislation and established national action plans, these formal frameworks exist in stark contrast to the reality on the ground. A deeply embedded system of hereditary slavery, targeting primarily the Haratine (descendants of slaves) and other Afro-Mauritanian groups, is sustained by institutional practices that actively sabotage justice, protect perpetrators, and reinforce a rigid social hierarchy (U.S. Department of State, 2024b; Whistler, 2024).

This strategic misalignment between de jure legal commitments and de facto institutional behavior is the central driver of Mauritania's internal socio-political fragility. The state's failure is not merely one of capacity but of political will, reflecting a broken compact between the state and a significant portion of its society (USIP, 2019). This broken compact manifests as a "Governance and Exclusion Loop," where the state's repressive apparatus is used to maintain an exclusionary social and economic order, which in turn fuels the grievances and instability that threaten long-term security (BTI-Project, 2024). This dynamic is exacerbated by structural pressures, including acute environmental vulnerability, rapid urbanization, and a high influx of refugees, which strain public resources and deepen social fault lines (ARAC International Inc., 2025).

This research document employs a multi-faceted analytical approach, grounded in structured analytic techniques, to dissect this paradox (Pherson & Heuer, n.d.). First, it conducts an institutional analysis to expose the mechanisms of institutional sabotage, detailing the chasm between Mauritania's anti-trafficking laws and its extractive practices. Second, it utilizes conflict systems research to model Mauritania's fragility, using quantitative indicators to illustrate the feedback loop between governance failures and social exclusion. Finally, it proposes a systems-based intervention rooted in the Institute for Economics & Peace's (IEP) Positive Peace framework. This approach moves beyond identifying problems to prescribing a solution focused on transforming the underlying systems that perpetuate fragility (Institute for Economics & Peace, 2024). The analysis argues that empowering a key national institution—the INCHTMS—can serve as a leverage point to disrupt the existing conflict system and build the foundations for measurable accountability and durable state legitimacy.

2. Institutional Analysis: The Chasm Between Law and Practice

The core of Mauritania's fragility lies in the institutional sabotage of its own legal system. While the government has created an impressive façade of legal reform to appease international partners, the underlying institutional machinery remains extractive, designed to preserve the traditional socio-economic order at the expense of justice and equality (BTI-Project, 2024). This

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creates a profound and deliberate disconnect between legal text and lived reality, particularly for victims of hereditary slavery and human trafficking.

2.1 Formalized Legal Frameworks Against Slavery and Trafficking

On paper, Mauritania has made significant strides in combating slavery. The practice was officially criminalized in 2007, and a subsequent 2015 anti-slavery law established specific anti-slavery courts and criminalized the failure to report slavery cases (Whistler, 2024; U.S. Department of State, 2024b). In 2020, the government passed a comprehensive anti-trafficking law. To implement these frameworks, the state created the National Committee for Combating Human Trafficking and Smuggling (INCHTMS), which operates a special fund to aid victims, and finalized a National Referral Mechanism (NRM) with standardized procedures for victim identification and care (U.S. Department of State, 2024b). These actions suggest a state committed to aligning with international human rights norms.

2.2 Extractive Institutional Practices: Sabotaging Justice

The reality of Mauritania's institutional behavior reveals that these legal frameworks are systematically undermined. The system's true purpose, or *intent*, diverges sharply from its stated *purpose*, a key dynamic in systems analysis (Institute for Economics & Peace, 2024). The intent appears to be the preservation of a social hierarchy rooted in slavery, achieved through the active suppression of justice.

2.2.1 Failure of Investigation and Prosecution Despite laws criminalizing slavery for nearly two decades, prosecutions remain exceptionally rare. Fewer than ten Mauritanians have ever faced jail time for the practice (Whistler, 2024). The U.S. Department of State's 2024 Trafficking in Persons Report highlights a persistent failure to investigate and prosecute cases, recommending it as a top priority for the government (U.S. Department of State, 2024b). This failure is not accidental but is driven by official complicity. Key actors within the justice system, including police, prosecutors, and investigative judges, reportedly refuse to investigate hereditary slavery crimes. Instead, local authorities consistently encourage victims and their families to resolve cases through "social mediation," a practice that circumvents the criminal justice system and is explicitly forbidden by law (U.S. Department of State, 2024b). Prosecutors, who are legally obligated to transfer slavery cases to the special courts, frequently settle them extra-judicially, often pressuring victims to withdraw complaints in exchange for minimal financial compensation (U.S. Department of State, 2024b). This practice transforms a criminal justice issue into a private dispute, effectively denying the crime's existence and reinforcing the impunity of slaveholders.

2.2.2 Official Complicity and Corruption Corruption and official complicity are described as "significant concerns, inhibiting law enforcement action" (U.S. Department of State, 2024b). There have been no reported investigations, prosecutions, or convictions of government employees complicit in trafficking crimes. This impunity extends to other forms of exploitation,

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such as forced begging, where corrupt Quranic teachers often enter agreements with prosecutors to have cases dropped. At the borders, security forces allegedly collude with smugglers, facilitating the passage of migrants who may include trafficking victims (U.S. Department of State, 2024b). The government's own actions betray its priorities; for instance, it deports third-country nationals arriving from Spain to the Senegal and Mali borders within hours, without systematically screening them for trafficking indicators (U.S. Department of State, 2024b). This institutional behavior demonstrates a clear preference for maintaining existing power structures and managing migration over protecting vulnerable individuals as required by its own laws.

2.2.3 A Broader System of Repression The institutional sabotage of anti-slavery laws is part of a wider ecosystem of state repression designed to silence dissent and control the population. The state wields a variety of highly repressive laws to suppress political speech and criticism.

- **Speech and Expression:** Authorities use laws related to criminal defamation and cybercrime to target activists and government critics, often arresting them based on the content of their social media posts (U.S. Department of State, 2024a). A law criminalizing the dissemination of "false information" via digital media, including WhatsApp messages and photographs of security forces, has been condemned by NGOs as unduly restricting freedom of expression (U.S. Department of State, 2024a).
- **Religion:** The state enforces a mandatory death penalty for "blasphemous remarks" and "sacrilege" without the possibility of repentance or appeal (U.S. Department of State, 2024a). A 19-year-old student faced a possible death sentence for allegedly "insulting and backbiting the prophet" on an exam (ARAC International Inc., 2025). These laws are weaponized to create an environment of fear, and bounties have been placed on the heads of writers who discuss links between religion and slavery in Mauritania (Whistler, 2024). Apostasy is an automatic capital crime (U.S. Department of State, 2024a).
- **State Violence:** Despite constitutional prohibitions, there are credible reports of government officials employing torture (Whistler, 2024.; U.S. Department of State, 2024a). Security forces use torture as a primary means of investigation, and individuals detained for political reasons face a high risk of being tortured (U.S. Department of State, 2024a). Police also use violence, including tear gas and batons, to disperse student protests, with no subsequent investigation into the resulting injuries (U.S. Department of State, 2024a).

This pattern of behavior, from the sabotaging of slavery cases to the violent suppression of protest, reveals a state where the separation of powers is "formally established but weak in practice," with the executive branch largely undermining checks and balances (BTI-Project, 2024). The institutions of the state function not to enforce the law impartially, but to extract resources (in the form of labor) and compliance (in the form of silence) from the population, thereby preserving the power of a ruling elite.

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3. Conflict Systems Research: Modeling Mauritania's Fragility Loop

The institutional failures in Mauritania are not isolated incidents but are components of a self-reinforcing conflict system. Using a systems thinking approach, which focuses on "patterns, interdependencies, and feedback loops," it is possible to model the dynamics that lock the country into a cycle of fragility (Institute for Economics & Peace, 2024, p. 7). This analysis identifies a core "Governance and Exclusion Loop" where political repression sustains social exclusion, which in turn fuels the instability and lack of legitimacy that characterize the Mauritanian state.

3.1 Indicators of Fragility: A Quantitative and Qualitative Overview

Multiple data sources and frameworks quantify Mauritania's fragility and the weakness of its governing institutions.

- **Social Exclusion:** Mauritania's demographic profile reveals clear fault lines. The population is divided between Arab-speaking groups (Haratines, 40%; Beydane, 30%) and Sub-Saharan African groups (30%). This division aligns with the historic slave/master distinction and creates significant socio-economic and political stratification (ARAC International Inc., 2025). The Bertelsmann Transformation Index (BTI) framework assesses the extent to which populations are excluded due to poverty and inequality, a key factor in Mauritania's social fabric (BTI-Project, 2024). V-Dem (Varieties of Democracy) indices provide granular data points to measure this exclusion, such as the *Exclusion by Social Group index (v2xpe_exlsocgr)* and the *Equality before the law and individual liberty index (v2xcl_rol)*, which quantify the gap between different social groups' access to rights and justice (Coppedge et al., 2025).
- **Governance and Rule of Law:** The BTI framework notes that in states like Mauritania, democratically elected representatives have "limited power to govern" and "strong veto groups are able to undermine fundamental elements of democratic procedures" (BTI-Project, 2024, p. 6). The judiciary is formally independent but weak in practice, with the executive undermining checks and balances (BTI-Project, 2024). This is corroborated by reports of torture and police brutality going uninvestigated (U.S. Department of State, 2024a).
- **Economic Vulnerability:** The economy is highly dependent on primary sectors like mining (iron ore, gold), making it vulnerable to commodity price volatility. Future stability is increasingly tied to nascent oil and gas resources, trading one form of dependency for another while lacking broad diversification (ARAC International Inc., 2025). This resource-centric economy provides little opportunity for the more than 56% of the working population laboring in the informal sector, where labor laws are not enforced (U.S. Department of State, 2024a).

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- **Environmental Stress:** As a predominantly desert country with only 0.5% arable land, Mauritania is highly susceptible to desertification, drought, and water scarcity. These are structural drivers of instability, forcing internal migration from pastoral communities to urban slums and increasing competition for resources (ARAC International Inc., 2025.; Whistler, 2024).

3.2 The Governance and Exclusion Loop in Mauritania

These indicators feed into a vicious cycle that perpetuates fragility. A systems analysis reveals a clear feedback loop where weak governance and social exclusion are mutually causal (Institute for Economics & Peace, 2024).

1. **Extractive Institutions & Political Repression:** The state's institutions, as detailed previously, are geared toward preserving the power of the Arab-Moorish elite. This is achieved through the active repression of dissent (via blasphemy and cybercrime laws), the violent suppression of protest, and the systematic denial of justice for slavery victims. This ensures the political and social dominance of one group.
2. **Reinforced Social & Economic Exclusion:** This political repression directly enables and reinforces the deep-rooted social and economic exclusion of Haratine and Afro-Mauritanian populations. Denied legal recourse, they remain trapped in exploitative labor conditions, including hereditary slavery. The state's failure to enforce labor laws in the vast informal sector or regulate unscrupulous subcontracting agencies (*tacherons*) further entrenches this economic marginalization (U.S. Department of State, 2024a; U.S. Department of State, 2024b). Socially, they are denied full participation in society, a reality codified in the complex social hierarchy where even a free Haratine may hold higher status than a free Afro-Mauritanian, but both are subordinate to the Beydane (Whistler, 2024).
3. **Erosion of State Legitimacy & Trust:** When the state is perceived as the primary agent of injustice and exclusion, its legitimacy collapses. Citizens come to see the government not as a protector of rights and provider of public goods, but as an oppressor. This breakdown of the state-society compact creates a vacuum of trust (USIP, 2019).
4. **Fueling Instability and Grievances:** The erosion of legitimacy and accumulation of grievances create fertile ground for instability. High rates of violent crime, such as mugging and armed robbery, are prevalent in resource-strained urban centers like Nouakchott (ARAC International Inc., 2025). More strategically, this environment makes communities vulnerable to extremist ideologies that offer an alternative to a failed and predatory state. The logic is simple: "Extremists' attempts to...establish an absolutist state...resonate only in societies where the existing state has failed its people" (Task Force on Extremism in Fragile States, n.d., p. 11).
5. **State Response: Increased Repression:** The state, perceiving this instability as a threat to its power, responds not with reform but with heightened repression, thus completing and strengthening the feedback loop. This cycle ensures the system's

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"homeostasis," or stability, is one of managed oppression and persistent fragility (Institute for Economics & Peace, 2024).

This loop demonstrates that Mauritania's fragility is not simply a collection of problems but a coherent, self-sustaining system. As conflict increases, "the mechanisms to address grievances are gradually depleted increasing the likelihood of further violence" (Institute for Economics & Peace, 2024, p. 13). Any effective intervention must therefore target the dynamics of the loop itself, rather than merely addressing its symptoms.

4. A Systems-Based Intervention: Applying the Positive Peace Framework

To break Mauritania's "Governance and Exclusion Loop," a transformative approach is required that moves beyond palliative measures and targets the system's fundamental dynamics. The IEP's Positive Peace framework provides an empirically derived, actionable model for such an intervention. Positive Peace is defined not by the absence of violence (Negative Peace), but by the presence of the "attitudes, institutions, and structures that create and sustain peaceful societies" (Institute for Economics & Peace, 2024, p. 5). By using this framework as a diagnostic and prescriptive tool, it is possible to identify key leverage points within the Mauritanian system and design an intervention that can foster systemic change.

4.1 The Positive Peace Framework as a Diagnostic and Prescriptive Tool

Positive Peace is comprised of eight interconnected pillars that are statistically associated with peacefulness, resilience, and other positive societal outcomes like higher GDP growth and well-being. A deficit in these pillars can predict future deteriorations into violence (Institute for Economics & Peace, 2024). Mauritania exhibits profound weaknesses across several key pillars:

- **Well-Functioning Government:** The government fails to deliver public services, protect rights, or ensure political stability, as evidenced by its repressive tactics and institutionalized corruption.
- **Low Levels of Corruption:** As noted, corruption is a significant concern, with officials actively colluding to subvert justice and facilitate illicit activities (U.S. Department of State, 2024b). This inefficiently allocates resources and destroys trust in institutions.
- **Acceptance of the Rights of Others:** The entire system of hereditary slavery and ethnic stratification is predicated on the non-acceptance of the rights of Haratine and Afro-Mauritanian people. Formal laws are ignored in favor of discriminatory traditional norms.
- **Equitable Distribution of Resources:** Deep inequality exists in access to economic opportunity, education, and health, largely along ethnic lines, leading to social exclusion (BTI-Project, 2024).

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A systems-based approach, termed "Halo" by IEP, seeks to map these interconnected systems to "discover their dynamic evolution and developing a practical approach to defining change" (Institute for Economics & Peace, 2024, p. 8). The goal is to identify interventions that can create reinforcing feedback loops, transforming a vicious cycle of fragility into a virtuous cycle of peace and resilience.

4.2 Identifying a Leverage Point: Institutionalizing the INCHTMS

The research question proposes a specific leverage point for intervention: targeting the **INCHTMS (National Committee for Combating Human Trafficking and Smuggling)**. This body, though currently part of the problem's façade, represents a critical subsystem with the potential for systemic impact. The 2024 TIP Report notes that the INCHTMS operates a victim aid fund and has developed procedural manuals, but the overarching National Referral Mechanism (NRM) it is meant to oversee was "not yet operational" (U.S. Department of State, 2024b). The report's top recommendation is to "empower the INCHTMS to coordinate the government's anti-trafficking response" (U.S. Department of State, 2024b, p. 1).

A systems-based intervention would focus on transforming the INCHTMS from a symbolic entity into an institution with genuine, binding authority and inclusive membership. This involves:

1. **Granting Binding Authority:** The INCHTMS must be given the legal mandate and political backing to compel action from other government bodies, including the police, prosecutors, and judiciary. Its directives regarding victim identification, referral, and the prosecution of cases must be non-negotiable, overriding the current practice of "social mediation."
2. **Ensuring Inclusive Membership:** The coordinating body of the INCHTMS must include meaningful, empowered representation from civil society organizations (CSOs), particularly those representing Haratine and Afro-Mauritanian communities, and independent labor unions. This ensures that the institution's actions are informed by the lived realities of victims and breaks the monopoly of the state actors who currently subvert justice.
3. **Operationalizing the National Referral Mechanism (NRM):** The intervention must provide the resources and political will to fully implement the NRM. This requires training front-line actors (law enforcement, social workers, judicial officials) to use the mechanism to proactively screen for trafficking indicators among vulnerable populations and refer all identified victims to care (U.S. Department of State, 2024b).

4.3 Targeting Positive Peace Pillars for Systemic Transformation

By institutionalizing a newly empowered INCHTMS, the intervention directly stimulates progress across multiple Positive Peace Pillars, creating a virtuous cycle.

- **Strengthening Well-Functioning Government and Reducing Corruption:** An effective INCHTMS that holds officials accountable for ignoring slavery cases directly

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attacks the culture of impunity and corruption. By forcing prosecutors to transfer cases to the anti-slavery courts and investigating official complicity, it begins to align institutional behavior with the rule of law. This improves the government's ability to deliver a core public service—justice—and enhances trust in its institutions. As corruption decreases, "resources are [more] efficiently allocated," leading to better funding for essential services (Institute for Economics & Peace, 2024, p. 11).

- **Promoting Acceptance of the Rights of Others:** Every successful prosecution of a slaveholder sends a powerful normative signal that the state no longer condones hereditary slavery. By centering the victim's experience and providing state-sponsored protection and services through the NRM, the intervention validates the rights and personhood of marginalized groups. Inclusive membership within the INCHTMS ensures these groups have a voice in shaping the state's response, moving from being subjects of state action to active participants in governance.
- **Fostering Equitable Distribution of Resources:** The INCHTMS's victim fund, if properly managed and scaled, can provide tangible resources, civil documentation, and income-generating opportunities to survivors (U.S. Department of State, 2024b). This is a direct, if small-scale, measure to promote more equitable resource distribution. More importantly, by breaking the cycle of forced labor, the intervention allows formerly enslaved individuals to pursue economic self-sufficiency, challenging the extractive economic model that depends on their exploitation.

This intervention is not a linear solution but a systemic one. Progress in one pillar reinforces progress in others. A less corrupt government is better able to protect human rights, which in turn fosters greater social equity. This creates a reinforcing feedback loop that can, over time, shift the entire system's equilibrium away from fragility and toward resilience.

5. Generating Measurable Accountability and Durable Legitimacy

A systems-based intervention must be anchored in measurable outcomes to be effective and credible. The final component of the proposed approach links systemic theory directly to quantifiable metrics for accountability, providing a clear pathway from intervention to the ultimate goal of durable state legitimacy. This requires establishing clear Key Performance Indicators (KPIs) and leveraging international partnerships through a framework of mutual accountability.

5.1 From Theory to Action: Key Performance Indicators (KPIs)

The success of empowering the INCHTMS can be tracked through a series of specific, actionable metrics that reflect a genuine shift in institutional practice. These KPIs serve as indicators, which "create an awareness that prepares an analyst’s mind to recognize the earliest signs of significant change" (Pherson & Heuer, n.d., p. 45). The objective is to move beyond

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monitoring outputs (e.g., laws passed, workshops held) to measuring outcomes that demonstrate systemic change.

KPI Category	***Specific Indicator***	***Source of Verification***	***Connection to Positive Peace Pillars***
Prosecutorial Efficacy	Annual number of investigations, prosecutions, and convictions for hereditary slavery and trafficking crimes, with sentences involving significant prison terms.	Ministry of Justice records; U.S. State Department TIP Report; NGO monitoring reports.	*Well-Functioning Government, Low Levels of Corruption, Acceptance of Rights*
Victim Identification & Support	Number of victims formally identified and referred to services through the NRM.	INCHTMS and CNDH records; service provider data (NGOs).	*Acceptance of the Rights of Others, Equitable Distribution of Resources*
Official Accountability	Number of investigations and prosecutions of government officials for complicity in or interference with trafficking/slavery cases.	Ministry of Interior/Justice records; independent media reports.	*Low Levels of Corruption, Well-Functioning Government*
Resource Allocation	Annual budget allocated and disbursed to the INCHTMS victim fund and the anti-slavery courts. Percentage of restitution ordered in criminal cases that is collected and provided to victims.	Ministry of Finance records; INCHTMS financial reports.	*Equitable Distribution of Resources*

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Institutional Capacity	Number of law enforcement, judicial officials, and labor inspectors trained on anti-slavery/trafficking laws and victim-centered approaches.	INCHTMS training records; reports from international partners supporting training.	*Well-Functioning Government*
Governance Indices	Year-over-year change in Mauritania's scores on relevant international indices, such as V-Dem's *Equality before the law (v2xcl_rol)*, BTI's *Rule of Law*, and the World Bank's *Control of Corruption* indicators.	V-Dem dataset (Coppedge et al., 2025); BTI Country Reports; World Bank Governance Indicators.	*Well-Functioning Government, Low Levels of Corruption*

These KPIs provide a transparent framework for holding the Mauritanian government accountable. They shift the focus from promises to performance, making it possible for both internal civil society and international partners to track progress and identify continued points of institutional failure.

5.2 The Path to Durable State Legitimacy

Achieving these KPIs is not an end in itself but a means to building durable state legitimacy. Legitimacy is earned when the state is perceived by its citizens as a credible and impartial arbiter of justice and a reliable provider of security and public goods. The current Mauritanian state fails this test for a large segment of its population.

The proposed intervention seeks to rebuild this legitimacy by repairing the broken state-society compact. This can be supported by international partners through a "mutual accountability" framework, which allows donors and committed partners in-country "to coalesce around a package of shared goals and respective responsibilities" (Task Force on Extremism in Fragile States, 2019, p. 41). International actors, including the United States, can align their diplomatic, development, and security assistance to incentivize the Mauritanian government's progress against the established KPIs. Security cooperation, for instance, can be made conditional on demonstrated improvements in human rights and accountability within the security sector, mitigating the risk that U.S. assistance empowers repressive forces (USIP, 2019).

As the state begins to successfully prosecute slaveholders, protect victims, and discipline corrupt officials, it demonstrates a tangible commitment to the rule of law for all its citizens. This builds trust. As formerly excluded groups gain access to justice and resources, their stake in the success and stability of the state increases. This builds social cohesion. Over time, this process

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transforms the state's role from an enforcer of an unjust hierarchy into a guarantor of universal rights. This is the foundation of durable state legitimacy, a legitimacy that cannot be imposed from the outside but must be built from within, through the slow, difficult, but essential work of institutional reform and accountability.

6. Conclusion

The strategic misalignment between Mauritania's progressive legal frameworks and its deeply extractive institutional practices is the central engine of its socio-political fragility. The state's active sabotage of justice for victims of hereditary slavery is not an isolated failure but a systemic feature designed to maintain an exclusionary and inequitable social order. This has created a self-perpetuating "Governance and Exclusion Loop," eroding state legitimacy and fostering the very conditions of grievance and hopelessness that can lead to instability and violent extremism.

Breaking this cycle demands a fundamental shift in approach, from treating symptoms to transforming the system itself. The Positive Peace framework offers a robust, evidence-based pathway for this transformation. By focusing on a critical leverage point, the empowerment of the INCHTMS, it is possible to initiate a virtuous cycle of accountability and reform. An INCHTMS with binding authority and inclusive representation can directly attack the culture of impunity, strengthen the rule of law, validate the rights of marginalized communities, and begin to foster a more equitable distribution of resources.

The success of this intervention is not a matter of conjecture; it can be rigorously measured against clear, outcome-oriented KPIs. Tracking progress on prosecutions, victim support, and official accountability provides a transparent mechanism for holding the Mauritanian government to its commitments. For international partners, this data-driven approach allows for the strategic alignment of aid, diplomacy, and security cooperation to incentivize genuine reform. Ultimately, by systematically dismantling the institutional architecture of slavery and exclusion, Mauritania can begin the generational task of rebuilding the trust between the state and its citizens. This is the only sustainable path toward mitigating fragility, building resilience, and achieving durable state legitimacy.

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